Boston Children's Hospital
Until every child is well™

HARVARD MEDICAL SCHOOL
TEACHING HOSPITAL

Office of General Counsel
300 Longwood Avenue, BCH3046
Boston, Massachusetts 02115
617-355-6800 | 617-355-6108 | *Fax* 617-730-1952

June 23, 2023

VIA EMAIL

Kevin Earl, Investigator
kevin.earl@mass.gov
Tania Taveras, Administrative Assistant
Tania.taveras@mass.gov
Massachusetts Commission Against Discrimination
1 Ashburton Place
Boston, MA 02108
bospositionstmts@mass.gov

Re: ***Onyx White v. VPNE Parking Solution and Boston Children's Hospital***
MCAD No. 23-NEM-01073
EEOC No. 16C-2023-01344

Dear Mr. Earl and Ms. Taveras:

I hope this letter finds you well. In connection with the above-entitled matter, enclosed please find the following pleading:

- Position Statement of Respondent, Boston Children's Hospital.

Please feel free to contact me should you have any questions regarding the enclosed. Thank you.

Sincerely,

Benjamin O. Hoerner

Benjamin O. Hoerner
Associate General Counsel

BOH/hao
Enclosures

cc: Mr. Onyx White, via first-class mail w/ encl.
VPNE Parking Solution, Legal Department, via first-class mail w/ encl.

COMMONWEALTH OF MASSACHUSETTS

ONYX WHITE,	)	
COMPLAINANT	)	
	)	**MCAD NO. 23-NEM-01073**
V.	)	
	)	**EEOC NO. 16C-2023-01344**
BOSTON CHILDREN'S HOSPITAL,	)	
RESPONDENT	)	

POSITION STATEMENT OF RESPONDENT BOSTON CHILDREN'S HOSPITAL

I. INTRODUCTION

Boston Children's Hospital ("BCH", the "Hospital" or "Respondent") is a charitable corporation primarily engaged as an academic medical center focused on medical research and the medical care of children. BCH is a full service medical center open 24 hours a day, every day. BCH's complex operations require the Hospital to rely on vendors to provide certain specialty services, such as security and parking services. For several years, VPNE Parking Solutions, Inc. ("VPNE") has provided Boston Children's Hospital a variety of services, including environmental and food staffing services. *See* Complainant's Charge, attached hereto as **Exhibit A**. *VPNE's* employment of Onyx White ("Mr. White" or "Complainant") is at the core of Mr. White's allegations of discrimination.

Boston Children's Hospital, on the other hand, was not the employer of Mr. White and is not an appropriate party to this action. Accordingly, Mr. White's allegations of discrimination against Boston Children's Hospital are without merit. As set forth in more detail below:

- Mr. White was a VPNE employee and all applicable employment decisions here were not made by BCH. Because Mr. White was not an employee of BCH, and BCH did not make any decisions about Mr. White's employment status, Mr. White's discrimination allegations against BCH are improper.
- BCH had no knowledge of Mr. White's criminal record history, or complaints of discrimination against other VPNE employees. Mr. White's allegations about "Respondent" are, factually, entirely about VPNE.
- Mr. White has not *pled* any facts asserting that Boston Children's Hospital discriminated against him, let alone provide any evidence.

The Charge is legally and factually deficient as to BCH, and it should be dismissed.

II. BACKGROUND

A. Relationship between BCH and VPNE

VPNE Parking Solutions, Inc. provides a variety of services to businesses throughout the Commonwealth. As advertised on its website, VPNE provides parking lot and garage management, hospitality solutions, healthcare solutions, shuttle services, and a variety of services for its clients. VPNE is responsible for the identification and hiring of employees into open positions for its clients.

Boston Children's Hospital has contracted with VPNE to provide services in subspecialty areas where Boston Children's Hospital does not have sufficient expertise or staff to fully cover the services. These VPNE employees are not BCH employees; they do not receive a work authorization from BCH; they are not provided with a BCH W-2; and they are not interviewed or hired by BCH.

In a pediatric hospital setting such as BCH, cleaning and sanitation are critically important because BCH is responsible for the care and treatment of some of the most medically complex patients in the world, many of whom have compromised immune systems. In order to maintain an appropriate level of environmental services staff, Boston Children's Hospital has engaged VPNE to provide environmental staffing services.

B. Mr. White's Employment with VPNE

On or about October 4, 2022, BCH was notified that VPNE had identified Mr. White as a candidate to provide environmental services to the Hospital. In connection with Mr. White's work for VPNE at a BCH location, Mr. White was identified as an "Associated Personnel – Children's Hospital Boston Support Services Provider" for the Hospital. In connection with Mr. White's preparation for work at BCH, the Hospital did not request nor receive any information related to Mr. White's background check, including a Criminal Offender Record Information ("CORI") background check.

On or about October 28, 2022, VPNE staffed Mr. White at a BCH-based location to provide environmental services assistance. During Mr. White's limited engagement at BCH, Mr. White did not report any issues to BCH regarding his treatment from VPNE or BCH employees. On or about November 3, 2022, BCH was notified that Mr. White would no longer be performing services at BCH. BCH in no way participated in the decision to terminate Mr. White's employment (to the extent that is what occurred).

III. COMPLAINT'S ALLEGATIONS

The specific allegations contained in the Charge, as well as Respondent BCH's response to each of these allegations, are set out below.

Allegation No. 1

In September 2022, during Respondent's application process, Respondent asked me for my criminal record, and I told Respondent about my criminal record.

Response No. 1

Respondent Boston Children's Hospital denies, or lacks sufficient information to answer the allegations in Allegation No. 1. BCH did not request Complainant's criminal record in connection with his employment for VPNE, nor did Mr. White apprise BCH of any criminal record history.

Allegation No. 2

In October 2022, Respondent hired me as a janitor.

Response No. 2

Respondent Boston Children's Hospital denies, or lacks sufficient information to answer the allegations in Allegation No. 2. Mr. White was employed by VPNE, and BCH identified Mr. White as an "AP – CHB Support Services Provider" to provide environmental services.

Allegation No. 3

Employees (Ethiopian) (Hispanic) (F&L/N/U) made comments to me like "Blacks make it hard for immigrants to get in," "Blackie," "Monkey," and "Black thug." Manager Abdul witnessed these comments and laughed at me with his employees.

Response No. 3

Respondent Boston Children's Hospital denies, or lacks sufficient information to answer the allegations in Allegation No. 3. Mr. White did not report any discriminatory remarks to any BCH employee with supervisory authority, and BCH was not aware of any discriminatory remarks involving Mr. White.

Allegation No. 4

In October 2022, a week after I was hired, Respondent terminated my employment due to my criminal record. I believe Respondent terminated me on the basis of my race and criminal record.

Response No. 4

Respondent Boston Children's Hospital denies or lacks sufficient information to respond to the allegations in Allegation No. 4. Respondent VPNE reported to BCH that Mr. White would

no longer provide services to BCH on or about November 3, 2023, however, BCH did not participate in any decision regarding Mr. White's employment status.

IV. ANALYSIS

Now, Mr. White alleges that VPNE and BCH discriminated against him on the basis of race and his criminal record history. However, because Mr. White was not an employee of Boston Children's Hospital, and BCH did not take *any* actionable employment action against Mr. White, his claims against BCH are without merit. Rather, VPNE made all applicable employment decisions, and the Hospital neither was aware of, nor participated in, any discriminatory conduct towards Mr. White. Accordingly, the Charge should be dismissed against BCH for lack of probable cause.

A. Mr. White Cannot Bring a Discrimination Action against Non-Employer Boston Children's Hospital

Because Mr. White is not an employee of Boston Children's Hospital, Mr. White's charges of race or criminal record history discrimination against the Hospital are without merit. Massachusetts' anti-discrimination statute, M.G.L. c. 151B, §4, provides the relevant restrictions against race-based and criminal history discrimination. With respect to race-based discrimination, the law provides that it shall be an unlawful practice "*[f]or an employer*" to take discriminatory action "because of the race" of an individual. M.G.L. c. 151B, §4(1). With respect to criminal background discrimination, the law similarly provides that it shall be unlawful "*[f]or an employer*" to take an impermissible action regarding certain criminal background information, such as an arrests that did not result in a conviction. M.G.L. c. 151B, §4(9). The plain text of the Massachusetts anti-discrimination statute confirms that Mr. White's claims of discrimination are misplaced against non-employer Boston Children's Hospital, and should be dismissed.

The Massachusetts Supreme Judicial Court has confirmed unequivocally that independent contractors, like the staff of VPNE, cannot bring anti-discrimination claims under M.G.L. c. 151B against the contracting business:

> Although the Commonwealth's employment discrimination law, G.L. c. 151B, affects a "broad array of employment practices" and extensively prohibits discrimination against certain protected classes, we do not read the statute as intending to broaden the definition of employee to include an independent contractor.

Comey v. Hill, 387 Mass. 11, 15 (1982). Put simply, M.G.L. c. 151B "does not apply to independent contractors." *Vicarelli v. Bus. Int'l, Inc.*, 973 F. Supp. 241, 244 (D. Mass. 1997); *see also Speen v. Crown Clothing Corp.*, 102 F.3d 625, 629 (1st Cir. 1996), *as amended* (Jan. 22, 1997) (collecting federal and state cases finding that federal and Massachusetts discrimination laws do not apply to independent contractors).

Here, Mr. White's race and criminal background discrimination claims against Boston Children's Hospital fail because he was not a Boston Children's Hospital employee. Mr. White has neither asserted, nor provided any facts to establish, that he was a Boston Children's Hospital employee. Rather, at most, Mr. White ambiguously cites complaints against "Respondent." Plainly, his complaints are against VPNE, his former employer; BCH cannot be held liable for any employment decisions at issue here.

The facts of this case highlight why the Supreme Judicial Court and other courts have found that the Massachusetts anti-discrimination statute does not apply to independent contractors. "[T]he central focus of inquiry [in a discrimination case] is whether the employer penalizes" an employee "because of their race, color, religion, sex, or national origin." *Harvard Law Sch. Coal. for Civil Rights v. President & Fellows of Harvard Coll.*, 413 Mass. 66, 69 (1992). Here, Boston Children's Hospital cannot speak to animus – good, bad or otherwise because Boston Children's Hospital simply had no knowledge or awareness of any of the claims Mr. White has asserted. Boston Children's Hospital did not make any employment decisions regarding Mr. White, whether regarding his hiring or his termination. The Hospital was simply informed of the decision to hire Mr. White, and that he would no longer be providing services to BCH. Because Boston Children's Hospital did not make any decisions regarding Mr. White's employment, let alone know the reason for the decisions, it would be nonsensical to find any type of liability for the Hospital.

B. <u>Mr. White's Hostile Work Environment Claim Is Without Merit.</u>

Even assuming, arguendo, that the Massachusetts statute against employment discrimination applies to Boston Children's Hospital's relationship with Mr. White (which it does not), Mr. White still has not made out his prima facie case of discrimination with respect to a hostile work environment claim.

To succeed on a hostile work environment claim, Mr. White would be required to show "(1) he is a member of a protected class; (2) he experienced uninvited harassment; (3) the harassment was racially-based [or based on inclusion in another protected class]; (4) the harassment was so severe or pervasive as to create an abusive work environment; and (5) the harassment was objectively and subjectively offensive." *Prescott v. Higgins*, 538 F.3d 32, 42 (1st Cir. 2008). Under Massachusetts law, "[a] hostile work environment is one that is 'pervaded by harassment or abuse, with the resulting intimidation, humiliation, and stigmatization, [and that] poses a formidable barrier to the full participation of an individual in the workplace." *Cuddyer v. Stop & Shop Supermarket Co.*, 434 Mass. 521, 532 (2001) (internal citations and quotations omitted).

At the outset, it is worth underscoring that Mr. White has not provided *any* evidence that he experienced any level of harassment. Mr. White has alleged that he heard approximately four separate comments that were racially inappropriate. However, Mr. White has not offered any proof

that suggests the cited incidents of purported harassment ever occurred. He does not provide any names, any dates, or any level of detail about the incidents. Mr. White's assertions are baseless.

More importantly, Mr. White has not met his burden to attach liability for Boston Children's Hospital. "[I]n order to establish [defendant] liability for a non-supervisory co-employee, 'a plaintiff must demonstrate that the [defendant] 'knew or should have known of the . . . harassment and failed to implement prompt and appropriate action.' " *Forrest v. Brinker Intern. Payroll Co., LP*, 511 F.3d 225, 230 (1st Cir. 2007). Here, Mr. White has not alleged that he reported any of the alleged harassment to *any* Boston Children's Hospital employee. Even assuming Mr. White's allegations are true (which, again, they are not), at most, Mr. White asserts that his VPNE manager "Abdul" (last name unknown), witnessed the comments on an undated occasion. However, BCH's liability would not be triggered by a fellow VPNE's awareness, and no report to BCH was made. *See Fisher v. Town of Orange*, 885 F. Supp. 2d 468, 475 (D. Mass. 2012) ("When coworkers, rather than supervisors, are responsible for the creation and perpetuation of a hostile work environment . . . a [defendant] can only be liable if the harassment is causally connected to some negligence on the employer's part."). Mr. White's hostile work environment claim against BCH should be dismissed.

V. AFFIRMATIVE DFENSES

Unless otherwise specified herein, Respondent denies, or lacks sufficient information to answer, each and every allegation in the Charge.

Respondent asserts the following defenses in response to the allegations contained in the Charge:

1. Complainant failed to establish a *prima facie* case with respect to his claims of discrimination.
2. Complainant failed to file a clear and concise statement of alleged discriminatory acts that would allow the Respondent to sufficiently respond to the allegations.
3. Complainant has not alleged that Respondent is his employer.
4. Complainant failed to state a claim upon which relief may be granted.
5. The Hospital is a charitable corporation and therefore entitled to charitable immunity on some or all of these claims.

BCH reserves its rights to raise additional defenses which may become apparent during the course of the Commission's proceedings.

VI. CONCLUSION

Complainant has presented no evidence for his claims of race and criminal record discrimination. Because Complainant cannot sustain any of his claims, Boston Children's Hospital respectfully requests that the Charge be dismissed for lack of probable clause.

I, upon information and belief, state under the pains and penalties of perjury, that I am authorized to verify this position statement on behalf of the Respondent, Boston Children's Hospital, and that while I do not have personal knowledge of all of the various facts recited in these answers, the response was prepared with the assistance and advice of counsel and information from the Respondent, upon which I have relied; and that the facts stated, subject to these limitations are true to the best of my knowledge, information and belief.

For the Respondent:

6.23.2023
Date

Shawn Goldrick
Senior Director Patient Support Services
Boston Children's Hospital
300 Longwood Avenue, Boston, MA 02115

Legal Counsel:

6/23/2023
Date

Benjamin O. Hoerner

Benjamin O. Hoerner, Esq.
Associate General Counsel
Office of the General Counsel
Boston Children's Hospital
300 Longwood Avenue, BCH 3046
Boston, MA 02115
Phone: (617) 355-4934
Fax: (617) 730-1952

CERTIFICATE OF SERVICE

I, Benjamin O. Hoerner, Esq., attorney for Boston Children's Hospital, hereby certify that on June 23, 2023, I caused notice to be given of the within Position Statement to the following parties at the following addresses:

Onyx White
27 Hartford Street
Boston, MA 02125

VPNE Parking Solution
Legal Department
17 West Street
Boston, MA 02111

Benjamin O. Hoerner
Benjamin O. Hoerner, Esq.

EXHIBIT A

The Commonwealth of Massachusetts
Commission Against Discrimination
One Ashburton Place, Boston, MA 02108
Phone: (617) 994-6000 Fax: (617) 994-6024

MCAD DOCKET NUMBER 23NEM01073
FILING DATE. 04/27/23

EEOC/HUD CHARGE NUMBER. 16C-2023-01344
VIOLATION DATE 04/27/23

Name of Aggrieved Person or Organization:

Onyx White
27 Hartford Street
Boston MA 02125

Named is the employer labor organization, employment agency, state/local government agency, or other entity who discriminated against me

VPNE Parking Solution
Legal Department
17 West Street
Boston, MA 02111

Boston Children's Hospital
Legal Department
300 Longwood Avenue
Boston, MA 02115

No of Employees 25+
Work Location Hingham

Cause of Discrimination based on
Race/Color (Black), Criminal Record

The particulars are:
I Onyx White, the Complainant believe that I was discriminated against by VPNE Parking Solution, Boston Children's Hospital, on the basis of arrest record and race/color This is in violation of M G L 151B Section 4 Paragraph 1, M G L 151B Section 4 Paragraph 9 and Title VII

1. In September 2022, during Respondent's application process, Respondent asked me about my criminal record and I told Respondent about my criminal record
2. In October, 2022, Respondent hired me as a janitor
3. Employees (Ethiopian) (Hispanic) (F&L/N/U) made comments to me like "Blacks make it hard for immigrants to get in," "Blackie," "Monkey," and "Black thug." Manager Abdul witnessed these comments and laughed at me with his employees
4. In October, 2022, a week after I was hired, Respondent terminated my employment due to my criminal record I believe Respondent terminated me on the basis of my race and criminal record.

Because of the foregoing, I believe that I was discriminated on the basis of race and criminal record when Respondent wrongfully terminated my employment and harassed me

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I hereby verify, under the pains and penalties of perjury, that I have read this complaint and the allegations contained herein are true to the best of my knowledge

(Signature of Complainant)

EQUAL EMPLOYMENT OPPORTUNITY COMMISSION

VPNE Parking Solution Legal Department 17 West Street Boston, MA 02111	Person Filing Charge This Person (Check One) Date of Alleged Violation Place of Alleged Violation	Onyx White (x) Claims to be aggrieved ( ) Is filing on behalf of 04/27/23 Hingham, Hospital
Boston Children's Hospital Legal Department 300 Longwood Avenue Boston, MA 02115	EEOC Charge Number MCAD Docket Number	16C-2023-01344 23NEM01073

NOTICE OF CHARGE OF DISCRIMINATION WHERE AN FEP AGENCY WILL INITIALLY PROCESS (See Attached Information Sheet For Additional Information)

You are hereby notified that a charge of employment discrimination under

[x] Title VII of the Civil Rights Act of 1964
[ ] The Age Discrimination in Employment Act of 1967 (ADEA)
[ ] The Americans Disabilities Act (ADA)

Has been received by

[x] The EEOC and sent for initial processing to MCAD (FEP Agency)

[x] The Mass Commission Against Discrimination (FEP) Agency and sent to the EEOC for dual filing purposes

While the EEOC has jurisdiction (upon the expiration of any deferral requirements if this is a Title VII or ADA Charge) to investigate this charge, EEOC may refrain from beginning an investigation and await the issuance of the Agency's final findings and orders These final findings and orders will be given weight by EEOC in making its own determination as to whether or not reasonable cause exists to believe that the allegations made in the charge are true

You are therefore encouraged to cooperate fully with the Agency All facts and evidence provided by you to the Agency in the course of its proceedings will be considered by the Commission when it reviews the Agency's final findings and orders In many instances the Commission will take no further action, thereby avoiding the necessity of an investigation by both the Agency and the Commission. This likelihood is increased by your active cooperation with the Agency

[X] As a party to the charge, you may request that EEOC review the final decision and order of the above named Agency For such a request to be honored, you must notify the Commission in writing within 15 days of your receipt of the Agency's issuing a final finding and order If the agency terminates its proceedings without issuing a final finding and order, you will be contacted further by the Commission Regardless of whether the Agency or the Commission processes the charge. the Recordkeeping and Non-Retaliation provisions of Title VII and the ADEA as explained on the second page of this form apply

For further correspondence on this matter, please use the charge number(s) shown

[ ] An Equal Pay Act Investigation (29 U S C 206(d) will be conducted by the Commission concurrently with the Agency's investigation of the charge

[X] Enclosure Copy of the Charge

Basis of Discrimination				
(x) Race	(x) Color	( ) Sex	( ) Religion	( ) National Origin
( ) Age	( ) Disability	( ) Retaliation	(x) Other	

Circumstances of alleged violation

SEE ENCLOSED COPY OF THE CHARGE OF DISCRIMINATION (or EEOC FORM 5)

Date	Type Name/Title of Authorized EEOC Official	Signature
5/8/2023	Feng An, Director	